

Puran vs Shakuntala on 25 January, 2017

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S.A. No.174/2006

HIGH COURT OF MADHYA PRADESH
BENCH AT GWALIOR

SINGLE BENCH:

(Vivek Agarwal, J.)

Second Appeal No.174/2006

.....Appellant : Puran (Dead) Th. L.Rs.

Versus

.....Respondent : Shakuntala (Dead) Th. L.Rs.

Shri Sameer Kumar Jain, learned counsel for the L.Rs. of
appellant.

Shri Jitendra Sharma, learned counsel for the L.Rs. of
respondent.

JUDGMENT

(25/1/2017) Appellant has filed this second appeal being aggrieved by the judgment and decree dated 19.12.2005 passed by the Court of Second Additional District Judge (Fast Track), Sheopur, in civil appeal No.39-A/2005, whereby the judgment and decree dated 5.9.2005 passed by the Court of learned Civil Judge, Class II, Vijaypur, Distt. Sheopur in civil suit No.61-A/1992 was reversed.

2. Plaintiff had filed a suit before the trial Court alleging that the suit property was that of Chatru son of Hateela. After death of Chatru, Lahore being his real brother was the only successor to the estate of Chatru, but defendant Puran had made an application before the Tahsil for mutation in his name claiming himself to be the son of deceased Chatru. In this case, plaintiff had filed an objection and when defendant Puran realized his weakness, he produced a fabricated will, yet Tahsil Court rejected the application moved by defendant Puran and accepted the objection raised by the plaintiff, who is daughter of Lahore and directed mutation in the name of the plaintiff. Puran had filed an appeal before the Court of SDO and Commissioner where his appeals were dismissed. Thereafter, Puran had filed a suit before Civil Judge, Class II, seeking declaration and injunction which was dismissed by the trial Court and thereafter by the first appellate Court. In the second appeal, High Court conceded his possession, but did not accept his title, as a result during the pendency of the suit Puran had forcefully occupied the suit land, hence suit was filed seeking possession, mesne profit and permanent injunction.

3. In the trial Court, Puran filed his written statement and submitted that deceased Chatru had two brothers and his father Panchu was one of the brothers of Lahore and Chatru and when Puran was of the age of 8-9 years, that time his father Panchu had died. Thereafter, mother of Puran entered into a marriage alliance as per the local customs with Chatru and she had attained the status of wife of Chatru and in that capacity Puran had become son of Chatru, therefore, he has right and title in the suit property. He also submitted that Chatru just one month before his death had executed a will in his favour. Learned trial Court dismissed the suit holding that plaintiff is not the sole legal heir of Chatru, as a result first appeal was filed.

4. In the first appeal, cross-objections were filed by Puran claiming that suit was barred by time and the learned trial Court has erred in considering it to be within limitation.

5. Learned First Appellate Court after framing four issues, held that defendant's witness Chabiram was not born at the time of alleged Dharicha marriage of Puran's mother with Chatru, as a result his evidence regarding Dharicha marriage cannot be accepted. Learned First Appellate Court has also perused the evidence very carefully and held that before the Revenue Courts Puran had canvassed himself to be son of Chatru, whereas in the civil suit he is claiming himself to be son of Panchu, therefore, there is contradiction in his pleadings and also held that the will was prepared subsequently when objection was raised by Lahore about the claims of Puran to the suit property. In view of such findings, the learned First Appellate Court has held that in fact Lahore was the only valid legal heir of Chatru and plaintiff Shakuntala being daughter of Lahore is entitled to claim the suit property through Lahore and reversed the findings of the trial Court.

6. Learned counsel for the appellant has vehemently argued that the issue of suit being within limitation has been wrongly decided by the Courts below and further the learned lower Appellate Court has wrongly granted mesne profit at the rate of Rs.4,000/- per annum and has wrongly reversed the findings of the trial Court. He has placed reliance on the judgment of this Court in the case of Parmanand & Anr. Vs. Jagrani & Ors. as reported in 2008(I) MPJR 264 wherein it has been held that merely living of a woman with a man for a number of years will not give her a status of wife, but it has been held that in terms of the provisions contained in Section 16 of the Hindu Marriage Act, 1955 though marriage of a woman may be illegitimate, still their children would be legitimate. The fact remains that it is an admitted position that Puran was not born out of the so called wedlock between his mother and Chatru, but is admittedly son of Panchu, therefore, in terms of the provisions contained in Section 16 of the Hindu Marriage Act, since Puran is not born out of the liaison between Chatru and mother of Puran, Puran will not attain legitimacy as a child of Chatru, and therefore, this judgment is not applicable to the facts and circumstances of the case. Learned counsel for the appellant has now placed reliance on the judgment of the Supreme Court in the case of D.R.Rathna Murthy Vs. Ramappa as reported in (2011) 1 SCC 158 drawing attention of this Court to para 9 to bring home the issue that there is absolutely no bar on the re-appreciation of evidence and if the findings of reversal of the Court below are based on the evidence contrary to record, then High Court can interfere with the findings of fact. In the present case, there is no dispute about the fact that Puran was not born out of the wedlock between Chatru and Puran's mother, therefore, no benefit can be drawn by Puran on the strength of the said judgment, coupled with the fact that the factum of Dhareecha marriage is also doubtful. Appellant has also placed

reliance on the judgment of this Court in the case of Kailash Chandra Vishwakarma v. Smt. Sarojana Mahuley as reported in 2007 (II) NPWN 23 to say that fact of plaintiff being denied for want of knowledge is deemed to be admitted. He submits that since the plaintiff Shakuntala has denied the knowledge of factum of marriage between Chatru and Puran's mother, it will be deemed to be admitted. This analogy is not applicable in the present case inasmuch as onus was on Puran to adduce evidence and prove his mother's marriage with Chatru. In this regard, he had produced Chabiram as a witness who has deposed his age to be 53 years, whereas that of Puran was recorded as 70 years and as per the statement of Puran when he was of 8-9 years of age Panchu had died and his mother had entered into Dharicha alliance with Chatru. Thus, learned first appellate Court has not committed any wrong in rejecting the evidence of Chabiram as it was not a reliable piece of evidence inasmuch as Chabiram is not a witness to the marriage of Puran's mother with Chatru.

7. Learned counsel for the appellant has placed reliance on the judgment of the Supreme Court in the case of Vinod Kumar Vs. Gangadhar as reported in (2015) 1 SCC 391 wherein in the matter of first appeal under Section 96 of CPC the Supreme Court has held that it is the duty of the first appellate Court to deal with all issues and evidence led by the parties before recording its findings. Ratio of this judgment is not available in the second appeal. As far as appreciation of evidence at the first appellate stage is concerned, learned first appellate Court has examined all the issues and evidence led by the parties before recording its findings of reversal. In the opinion of this Court, there is no perversity in the findings recorded by the Court below inasmuch as Puran has failed to discharge the burden of proving the will allegedly executed by Chatru in his favour, so also the marriage of his mother to Chatru and that he is a child of Chatru born out of the liaison between his mother and Chatru granting him the benefits accruing even from a illegitimate liaison between his mother and Chatru. Thus, there are no ingredients on record to show that Puran is having equal or preferential right to succession as were available to Lahore being surviving brother of Chatru under the Hindu Succession Act, 1956. Hence, the appeal fails and is dismissed.

(Vivek Agarwal) Judge ms/-